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STATE OF IOWA
BEFORE THE IOWA STATE BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE LICENSE	x	BOARDS FINAL FINDINGS OF
TO PRACTICE AS A PSYCHOLOGIST	x	FACT, CONCLUSIONS OF LAW,
OF ROBERT L. PFEIL, RESPONDENT.	x	DECISION AND ORDER.
	x	C-PSY 83-6

The above caption matter came on for hearing on May 25, 1984 at approximately 9:00 a.m, it was held in the fourth floor conference room, State Department of Health, Lucas State Office Building, Des Moines, Iowa. The hearing was conducted by Hearing Officer, Mark W. Wheeler.

Those present for the Board were Darlene E. Blake, Darrell Dierks, Gratia Gilbert, Joan E. Grant, Gerald Jorgensen, and Herbert S. Roth. The investigating Board Member, Phyllis S. Hansell, abstained from the hearing and the decision making process.

The Board was represented by Assistant Attorney General Elizabeth Hart.

The Respondent Robert L. Pfeil was present and represented by Counsel, Roger J. Hudson, Attorney at Law.

The Board after reviewing all the evidence presented, testimony and documentation makes the following Final Findings of Fact, Conclusions of Law, Decision and Order.

The Iowa State Board Of Psychology Examiners granted Respondents request for a closed hearing.

The Attorney for the Board at the close of the hearing requested the opportunity to respond to Respondents administrative hearing brief which was granted and a response was submitted within the 15 day time limit given by the Board for response.

FINDINGS OF FACT

The Board after having reviewed all the evidence, testimony and documentation presented makes the following Findings of Fact as enumerated below:

1. The Respondent, Robert L. Pfeil is a licensee licensed by the Iowa State Board of Psychology Examiners.
2. The Respondent, licensee is alleged to have engaged in a dual relationship with a client in violation of Iowa Administrative Code Rule 140.212(14)f(1).
3. A fellow employee sought professional counseling services from the licensee sometime during March, 1980 because she was experiencing marital difficulties. This individual was an employee of an institution to which Dr. Pfeil consulted; she will be referred to as Ms. B.B.
4. Ms. B.B.'s professional counseling relationship with the Licensee continued through May and June of 1980.
5. On June 30, 1980 Dr. Pfeil and Ms. B.B. engaged in intimate sexual relations. This occurred during the professional psychologist-client relationship that existed between the Licensee, Dr. Pfeil, and Ms. B.B.
6. Ms. B.B. subsequently moved from the area to Waterloo, Iowa.

7. January 18, 1982 Ms. B.B. came to Dr. Pfeil for an appointment which she had scheduled on that date.
8. It was Ms. B.B.'s intention that this appointment be for counseling purposes with Dr. Pfeil, because she was not satisfied with her counseling from another professional in Waterloo and she felt that the Licensee, Dr. Pfeil, better understood her problems.
9. This, January 18, 1982 interaction was a counseling appointment and the professional relationship of client and counselor existed.
10. At the close of the January 18, 1982 counseling session Dr. Pfeil engaged in sexually intimate activities with Ms. B. B.
11. Ms. B.B. set up the appointment through Dr. Pfeil's secretary and was sent a billing for \$50.00 as the result of this session. There are two bills which she received, one on February 10 of 1982 and another on March 9, 1982 corroborating the position that this was a counseling appointment rather than a personal encounter between friends.

CONCLUSIONS OF LAW

The sexual encounter on June 30, 1980 clearly was in the opinion of the Board a dual relationship in violation of 470 IAC 140.212(14)f(1). The Board is convinced that there was a client-counselor relationship and that the activities that took place on this date were in violation of the prohibition against a dual relationship.

The Respondent contends the language of the above cited rule is vague in violative of due process. Iowa Case Law indicates that as long as the ordinary person exercising common sense can sufficiently understand and fulfill its proscription . . . [it is not constitutionally vague] *Millsap v. Cedar Rapids Civil Service Commission* 249 N.W. 2nd (Iowa 1977). The Licensee is bound by the knowledge expected of a licensee in the practice of Psychology and the ethical standards that pertain thereto which prohibit dual relationships, specifically including engaging in an intimate or close personal relationship outside the counseling relationship at the same time that a counseling relationship is going on. Further this rule was properly promulgated and adopted. The Board cannot declare its own rules unconstitutional.

The Respondent Licensee contends that the actions that occurred took place outside the counseling relationship, which had been terminated by request of Ms. B.B. The Board is of the contention that a psychologist-client relationship is one that requires the judgement of the Psychologist to determine whether or not in their professional judgement their continued interaction with the client is a risk of exploitation of that client and their vulnerability to the power position in which a psychologist finds oneself. The Board feels it takes longer than one month to terminate this type of power relationship.

Further the Board feels that the January 18, 1982 incident is one which was within a psychologist-client relationship as corroborated by the billing aspects and the appointments setting of Ms. B.B. by the Licensee Dr. Pfeil.

In conclusion the Board feels that Dr. Pfeil's actions were clearly in violation of the rule 470 IAC 140.212(14)f(1) and the professional code of ethics applicable to all licensees, in that

Dr. Pfeil took advantage of Ms. B.B.'s vulnerability and his position of power relative to her counseling needs and dependency relationship that existed.

DECISION AND ORDER

It is hereby Ordered, Adjudged and Decreed that the existence of a dual relationship was substantiated by the evidence presented and that the license of Dr. Robert L. Pfeil be suspended until a date not earlier than March 31, 1985 or beyond that date until such time as documentation is provided to the Board of satisfactory completion of a formal graduate level course in ethics acceptable to the Board from a psychology program in an accredited university.

DATE

FOR AND ON BEHALF OF THE
BOARD OF PSYCHOLOGY EXAMINERS